

Opinion of the Court

JUSTICE THOMAS delivered the opinion of the Court.

In *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), this Court authorized a damages action against federal officials for alleged violations of the Fourth Amendment. Over the past 42 years, however, we have declined 11 times to imply a similar cause of action for other alleged constitutional violations. See *Chappell v. Wallace*, 462 U. S. 296 (1983); *Bush v. Lucas*, 462 U. S. 367 (1983); *United States v. Stanley*, 483 U. S. 669 (1987); *Schweiker v. Chilicky*, 487 U. S. 412 (1988); *FDIC v. Meyer*, 510 U. S. 471 (1994); *Correctional Services Corp. v. Malesko*, 534 U. S. 61 (2001); *Wilkie v. Robbins*, 551 U. S. 537 (2007); *Hui v. Castaneda*, 559 U. S. 799 (2010); *Minneci v. Pollard*, 565 U. S. 118 (2012); *Ziglar v. Abbasi*, 582 U. S. 120 (2017); *Hernández v. Mesa*, 589 U. S. — (2020). Nevertheless, the Court of Appeals permitted not one, but two constitutional damages actions to proceed against a U. S. Border Patrol agent: a Fourth Amendment excessive-force claim and a First Amendment retaliation claim. Because our cases have made clear that, in all but the most unusual circumstances, prescribing a cause of action is a job for Congress, not the courts, we reverse.

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Blaine, Washington, is the last town in the United States along U. S. Interstate Highway 5 before reaching the Canadian border. Respondent Robert Boule is a longtime Blaine resident. The rear of his property abuts the Canadian border at “0 Avenue,” a Canadian street. Boule’s property line actually extends five feet into Canada. Several years ago,

Privacy & Surveillance Accountability et al. by *Gene C. Schaerr*, *Erik S. Jaffe*, *Hannah C. Smith*, and *Kathryn E. Tarbert*; for the Reporters Committee for Freedom of the Press et al. by *Bruce D. Brown*; and for Roy Sargeant by *R. Stanton Jones* and *Andrew T. Tutt*.

David M. Zionts, *Samuel Weiss*, and *Oren Nimni* filed a brief for Dee Farmer et al. as *amici curiae*.